

The Indian Police Service (Appointment by Limited Competitive Examination) Regulations, 2011

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The Indian Police Service (Appointment by Limited Competitive Examination) Regulations, 2011

Rule

THE-INDIAN-POLICE-SERVICE-APPOINTMENT-BY-LIMITED-COMPETITIVE-EXAMINATION-REGULATIONS-2011
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The Indian Police Service (Appointment by Limited Competitive Examination) Regulations, 2011

Published vide Notification No. G.S.R. 97(E), dated 21st February, 2012

Ministry Of Personnel, Public Grievances And Pensions

(Department of Personnel and Training)

G.S.R. 97(E). - In exercise of the powers conferred by sub-section (1) of section 3 of the All India Services Act, 1951 (61 of 1951), and In pursuance of rule 8 of sub-rule 1 of the Indian Police Service (Recruitment) Rules, 1954, the Central Government after consultation with the Governments of the States concerned and Union Public Service Commission,

hereby makes the following regulations:

1.

Short title.

- These regulations may be called the Indian Police Service (Appointment by Limited Competitive Examination) Regulations, 2011.

2.

Definitions.

(1)

In these regulations, unless the context, otherwise requires,-

(a)

"available vacancies" means the vacancies In the Service as determined by the Central Government under sub-rule (2) of rule 4 of the Recruitment Rules are to be filled on the results of an examination;

(b)

"Commission" means the Union Public Service Commission;

(c)

"examination" means a limited competitive examination for Recruitment to the Service held under sub-rule (1)(a) of rule 4 of the Recruitment Rules;

(d)

"list" means the list of candidates prepared under sub-regulation (1) of regulation 7;

(e)

"Recruitment Rules" means the Indian Police Service (Recruitment) Rules, 1954;

(f)

"Scheduled Castes", "Scheduled Tribes" and "Other Backward Classes" shall have the same meanings as are assigned to them by clauses (24) and (25) respectively of article 366 of the "Constitution of India; and

(g)

"Service" means the Indian Police Service.

(2)

All other words and expressions used in these regulations and not defined shall have the meanings respectively assigned to them in the Recruitment Rules.

3.

Holding of Examination.

(1)

The examination shall be conducted by the Commission in the manner notified by the Central Government from time to time.

(2)

The dates on Which and the places at Which the examination conducted, shall be fixed by the Commission.

4.

Conditions of Eligibility in order to be eligible to compete at the examination, a candidate must satisfy the following conditions, namely

-

(i)

Nationality

(a)

He must be a citizen of India, or

(b)

He must belong to such categories of persons as may, from time to time, be notified in this behalf by the Central Government.

(ii)

Age He must have not attained the age of 35 years on the first day of August of the year In Which the examination is held ,

Provided that the upper age limit may be relaxed In respect of such categories of persons as may from time to time, be

notified In this behalf by the Central Government to the extent and subject to the conditions notified in respect of each category

(iii)

Educational Qualifications' He must hold a degree of any University Incorporated by an Act of the Central or State Legislature in India or other educational institutions established by an Act of Parliament or declared to be deemed as Universities under section 3 of the University Grants Commission Act, 1956, or a foreign University approved by the Central Government from time to time, or possess a qualification Which has been recognised by the Central Government [for the purpose of admission to the examination] .

Provided that-

(a)

In the exceptional cases the Commission may, treat as qualified a candidate who though not possessing the qualification prescribed in this clause, has passed examinations conducted by other Institutions of a standard which, in the opinion of the Commission, Justifies the admission of the candidate to the examination, and.

(b)

candidates who are otherwise qualified but have taken degrees from foreign Universities, Which are not approved by the Central Government, may also be admitted to the examination at the discretion of the Commission

(iv)

Attempts at the examination Every candidate appearing for the examination, who is otherwise eligible, shall be permitted two attempts at the examination, and the appearance of a candidate at the examination will be deemed to be an attempt at the examination Irrespective of his disqualification or cancellation, as the case may be, of his candidature.

Provided that the number of attempts may be relaxed in respect of such categories of persons as may from time to time, be notified In this behalf by the Central Government to the extent and subject to the conditions notified In respect of each category

(v)

Officers recruited as Deputy Superintendents of Police In States under State Police Service and Assistant Commandants In Central Para Military Forces (Central Reserve Police Force, Border Security Force, Indo-Tibet Border Police, Central Industrial Security Force and Sahstra Seema Bal) and officers of the rank of Captain or Major or equivalent In the Armed Forces having minimum five years experience of continuous and actual service will be eligible to appear in the examination.

(vi)

Fees - He must pay the fees specified by the Commission

(vii)

Vigilance Clearance - Every candidate opting for the Limited Competitive Examination, will have to enclose a certificate from his parent cadre declaring him clear from Vigilance angle Current Vigilance clearance certificate from the parent cadre will have to be produced at the time of interview.

5.

Disqualification for Admission.

- Any attempt on the part of a candidate to obtain support for his candidature by any means may be held by the Commission to disqualify him for admission to the examination

6.

Commission's decision Final.

- The decision of the Commission as to the eligibility or otherwise of a candidate for admission to the examination shall be final and no candidate to whom a certificate of admission has not been Issued by the Commission shall be admitted to the examination

7.

List of successful candidates.

(1)

Subject to the provision of sub-regulation (2), the Commission shall forward to the Central Government list arranged In order of merit of the candidates Who have qualified by such standards as the Commission may determine.

(2)

The candidates, belonging to any of the Scheduled Castes, the Scheduled Tribes and other Backward Classes may, to

the extent of the number of vacancies reserved for the Scheduled Castes, the Scheduled Tribes and Other Backward Classes be recommended by the Commission by a relaxed standard, subject to the fitness of these candidates for selection to the Service."

Provided that the candidates, belonging to the Scheduled Castes, the Scheduled Tribes and other Backward Classes who have been recommended by the Commission without resorting to the relaxed standard referred to in this sub-regulation, shall not be adjusted against the vacancies reserved for the Scheduled Castes, the Scheduled Tribes and Other Backward Classes.

8.

Appointments from the list.

- Subject to the provisions of regulations 9,10,12 and 13, candidates may be considered for appointment to the available vacancies in the order in which their names appear in the list.

9.

Reservation of vacancies for the candidates belonging to the Scheduled Castes, Scheduled Tribes Candidates and other Backward Classes.

(1)

In pursuance of rule 7 of the Recruitment Rules, 15 per cent 7½ per cent and 27 per cent of the available vacancies shall be reserved for candidates who are members of the Scheduled Castes, Scheduled Tribes and other Backward Classes respectively.

(2)

In filling the vacancies so reserved, candidates who are members of the Scheduled Castes, the Scheduled Tribes and Other Backward Classes, shall be considered for appointment in the order in which their names appear in the list.

10.

Disqualification for appointment on grounds of plural Marriage:.

-

(a)

no person who has entered into or contracted a marriage with a person having a spouse living, or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person,

shall be eligible for appointment to the Service

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and there are other grounds for so doing, exempt any person from the operation of this sub-regulation

11.

Disciplinary action .

- A candidate who is or has been declared by the Commission to be guilty of -

(i)

obtaining support for his candidature by the following means, namely -

(a)

offering illegal gratification, or

(b)

applying pressure on, or

(c)

blackmailing, or threatening to blackmail any person connected with the conduct of the examination, or

(ii)

Impersonating, or

(iii)

procuring impersonation by any person, or

(iv)

submitting fabricated documents or documents which have been tampered with, or

(v)

making statements which are incorrect or false, or suppressing material information, or

(vi)
resorting to the following means In connection With his candidature for the examination, namely:-

(a)
obtaining copy of question paper through Improper means,
(b)
finding out the particulars of the persons connected with secret work relating to the examination,

(c)
Influencing the examiners; or

(vii)
using unfair means during examination, or

(viii)
writing obscene matters or drawing obscene sketches In the scripts, or

(ix)
misbehaving In the examination hall including tearing off the scripts, provoking fellow examinees to boycott examination, creating a disorderly scene and the like; or

(x)
harassing or doing bodily harm to the staff employed by the Commission for the Conduct of their examination, or

(xi)
violating any of the instructions Issued to candidates along with their admission certificates permitting them to take the examination, or

(xii)
attempting to commit or, as the case may be abetting the Commission of all or any of the acts specified In the foregoing clauses may, In addition to rendering himself liable to criminal prosecution, be liable-

(a)
to be disqualified by the Commission from the examination for Which he is a candidate, and or

(b)
to be debarred either permanently or for a specified period-

(i)
by the Commission, from any examination or selection held by them;

(ii)
by the Central Government from any employment under them, and

(c)
If he is already In service under Government to disciplinary action under the appropriate rules'

Provided that no penalty under clause (a) or clause (b), as the case may be, shall be Imposed except after-

(i)
giving the candidate an opportunity of making such representation In writing as he may wish to make In that behalf, and

(ii)
taking the representation, If any submitted by the candidate, Within the period allotted to him, into consideration.

12.

Disqualification for Appointment on Medical Grounds.

- No candidate shall be appointed to the service who after such medical examination as the Central Government may prescribe is not found to be In good mental or bodily health and free from any mental or physical defect likely to Interfere with the discharge of the duties of the service.

13.

Inclusion in list confers no right to appointment.

- The Inclusion of a candidate's name in the list confers no right to appointment unless the Central Government is satisfied,

after such enquiry as may be considered necessary, that the candidate having regard to his character and antecedents is suitable in all respects for appointment to the Service

14.

- Lien, if it exists In the parent service of the candidate will terminate only when he or she gets confirmed In the Indian

Police Service.

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